

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUMC047374: DOUGLAS PARTELLO vs CITY OF OXNARD, et al.
08/31/2026 in Department 43
Motion to Quash by Third Party Witness Fairbank, Maslin, Metz & Associates, Inc.

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant City of Oxnard's Motion to Quash Subpoenas to FM3 and Lew Edwards Group, or in the alternative, for a protective order, and for monetary sanctions and joinders.

Tentative Ruling: Defendant City of Oxnard's Motion to Quash Subpoenas to FM3 and Lew Edwards Group, is DENIED.

The alternative Motion for a Protective Order is GRANTED, and the following Protective Order is hereby issued.

With respect to the subject subpoenas, this order:

- A. Limits the subject matter to documents specifically concerning Aaron Starr, the October 18, 2024, release, or the \$4 million litigation-cost representation;
- B. Limits the period to the window surrounding the preparation and dissemination of the October 18, 2024, release to include September 1, 2024, to October 18, 2024;

- C. Excludes all projects, surveys, outreach, procurement, billing, media work, social media, training, and ESI-retention records unrelated to the matters described in Item A, above;
- D. Redacts personal, survey-response, proprietary, and trade-secret information; and,
- E. Provides Defendant City of Oxnard with advance review of potentially privileged material, with a deadline of three weeks post-receipt for the Defendant City of Oxnard to complete its review for privilege. Defendant is ordered to provide a privilege log by that date sufficient for the Court to identify withheld documents and rule on issues of privilege.

The request that the protective order assigns an extraordinary retrieval or forensic costs to Plaintiff is to vague for the Court to enforce and it is denied.

The request for monetary sanctions is GRANTED in part. Plaintiff is ordered to pay monetary sanctions to Defendant in the amount of \$7,222.50 on or before September 30, 2026.

The Court notes multiple discovery motions scheduled in the future and will discuss with the parties the scheduling of an Order to Show Cause hearing requesting the parties to show cause regarding why the Court should not continue the future motions and appointment a discovery referee pursuant to Code of Civil Procedure § 639.

Moving party is ordered to prepare a protective order consistent with this ruling for the Court's signature and serve notice of the Court's ruling.